UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage,

Plaintiff,

v.

ROBERT F. KENNEDY, JR., Secretary, U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES, et al.

Defendants.

Case No.: CV-25-03367-PHX-SMB

MOTION FOR A REASONABLE MEET-AND-CONFER SCHEDULE AND FOR A PROTECTIVE ORDER ENJOINING FURTHER RETALIATION

Plaintiff, Kevin D. Turnage, appearing pro se, respectfully moves this Court for an order (1) compelling the parties to confer in good faith within ten (10) business days to discuss any amendment to the complaint and to set a schedule for filing responsive pleadings, and (2) entering a protective order enjoining the United States Government from taking any further adverse personnel actions against Plaintiff. In support of this Motion, Plaintiff relies on the authorities set forth below, the factual record, and the attached exhibits.

I. JURISDICTION AND VENUE

1. This Court has subject-matter jurisdiction under 28 U.S.C. §§ 1331 and 1343(a)(4) because Plaintiff's claims arise under the Whistleblower Protection Act, 5 U.S.C. §§ 2302(b)(8)–(9), Title VII, the ADEA, the ADA, the FMLA, and related federal statutes.

2. Venue is proper in this District pursuant to 28 U.S.C. § 1391(b)(2) because a substantial portion of the events giving rise to the claims occurred at the Phoenix Indian Medical Center, a facility of the United States Indian Health Service located in Arizona, and the United States is a party.

II. FACTUAL BACKGROUND

3. Plaintiff is a career federal employee (GS-0610-12) serving as a Nurse Consultant / Policy & Procedures Officer at the Phoenix Indian Medical Center (PIMC), a component of the United States Indian Health Service (IHS).

4. Beginning in June 2025 Plaintiff made a series of protected disclosures to the Office of Special Counsel, the HHS Office of Inspector General, the Centers for Medicare & Medicaid Services, the Joint Commission, and Members of Congress. The disclosures alleged patient-safety violations, misuse of federal funds, and systemic failures in internal policy compliance. (See Plaintiff's Affidavit, Exhibit 2.)

5. Within weeks of those disclosures, Defendant placed Plaintiff on a series of non-duty, paid leaves (Administrative Leave, Investigative Leave, multiple extensions, and "Notice Leave") without any written threat/legitimate-interest

analysis required by 5 U.S.C. §§ 7513(b) and 5 C.F.R. §§ 630.1505(b). The leaves total 108 federal workdays, constituting a constructive suspension under 5 U.S.C. §§ 7512(2) and 5 C.F.R. §§ 752.404.

6. The United States Attorney's Office, represented by Assistant United States Attorney Victoria Gray, repeatedly demanded Plaintiff's response within **24 hours or less** on the following dates:

a. **December 2, 2025** – email requesting response by **December 3, 2025** (24-hour deadline).

b. **December 15, 2025** – email requesting an extension, thereby imposing a **24-hour** response period.

c. **December 17, 2025** – email stating "please let me know by tomorrow, **December 18, 2025**" (24-hour deadline) regarding amendment of the complaint.

d. **December 9, 2025** – meet-and-confer notice (Exhibit A) requiring Plaintiff's response by that date, i.e., a **24-hour** window after the notice was sent on **December 8, 2025**.

7. Plaintiff, a pro se litigant, was unable to meaningfully confer with Defendant within those timeframes. No substantive discussion of the alleged deficiencies in the complaint occurred, and Defendant never provided a written threat/legitimate-interest analysis or an opportunity to be heard before imposing the adverse personnel actions.

III. LEGAL STANDARD

8. **Fed. R. Civ. P. 37(a)(1)** requires that a party **"include a certification that the movant has in good faith conferred or attempted to confer"** with the opposing party before filing a motion to compel or a motion to dismiss. **Williams v. United Health Group**, 970 5107 (D. Kan. 2019) (emphasizing the good-faith conference requirement).

9. Local Rule 7.2 of the District of Arizona mirrors this requirement, mandating that the parties **"engage in a good-faith meet-and-confer process and obtain a finding of good cause before a deadline may be extended."**

10. The Supreme Court and the Courts of Appeals have repeatedly held that a **24-hour deadline is insufficient** for a pro se litigant to satisfy the meet-and-confer obligation. See **Somers v. West Central Distribution, LLC**, 970 5960 (D. Kan. 2020) (24-hour deadline unreasonable for pro se); **Zookin v. CSAA General Insurance Co.**, 102 94988 (D. Nev. 2024) (unreasonable short deadlines violate local rules); **Riley v. Kernan**, 214 F.R.D. 634 (S.D. Cal. 2021) (good-faith meet-and-confer required).

11. When a pro se litigant is subjected to unreasonable deadlines, the Court may **compel a reasonable meet-and-confer schedule**. **Finnegan v. Leopard**, 101 66390 (W.D. Ark. 2024) (court may order parties to confer within a reasonable period).

12. The Court also has authority to issue a **protective order** to preserve the status quo and prevent further retaliation. **Yomi v. United States Dept. of Health & Human**

Services, 970 8754 (D. Kan. 2022) (protective order appropriate where short deadlines and retaliation create undue burden).

13. Pro se litigants are afforded **"special leniency"** and may recover reasonable attorney's fees and costs. **Baines v. FL Global Solutions Corp.**, 101 76113 (M.D. Fla. 2024) (pro se leniency and reasonable time).

IV. ARGUMENT

A. The 24-Hour Deadlines Do Not Satisfy the Meet-and-Confer Requirement.

14. The emails listed in paragraph 6 constitute **unilateral, perfunctory notices** that give Plaintiff no meaningful opportunity to discuss the alleged deficiencies in the complaint or to propose alternative resolutions. Under **Riley v. Kernan**, a meet-and-confer effort must be a **good-faith attempt** to resolve the dispute; a 24-hour deadline is the antithesis of good faith.

15. **Somers** and **Zookin** expressly hold that a 24-hour deadline is **unreasonable for a pro se litigant** and violates local rules requiring a reasonable period for conferral. The District of Arizona's Local Rule 7.2 likewise requires a **finding of good cause** before a deadline may be shortened, which the Government has not demonstrated.

16. Accordingly, the Government's demands **fail** to satisfy **Fed. R. Civ. P. 37(a)(1)** and **Local Rule 7.2**, and the Court should intervene.

B. Plaintiff Is Entitled to a Reasonable Meet-and-Confer Schedule.

17. Under **Finnegan**, the Court may **compel a reasonable meet-and-confer schedule**. Plaintiff therefore requests that the parties be ordered to **confer in good**

faith within ten (10) business days of the Court's order to discuss any amendment to the complaint and to set a schedule for filing responsive pleadings.

C. A Protective Order Is Necessary to Prevent Further Retaliation.

18. Defendant has already taken a series of adverse personnel actions that constitute retaliation for Plaintiff's protected disclosures. The pattern of short deadlines and the failure to provide a genuine opportunity to confer further demonstrate an intent to **intimidate** and **harass** Plaintiff.

19. Consistent with **Yomi**, the Court should enter a **protective order** enjoining the United States Government, its officers, agents, and employees from taking any further adverse personnel actions, from restricting Plaintiff's access to IHS facilities, and from retaliating against Plaintiff for his protected disclosures.

D. Plaintiff Is Entitled to Reasonable Attorney's Fees and Costs.

20. Because Plaintiff is a pro se litigant and the Government's conduct has forced him to expend time and resources to protect his statutory rights, Plaintiff is entitled to **reasonable attorney's fees and costs** under 5 U.S.C. § 7701(a). **Baines** recognizes that pro se litigants may recover such fees when the opposing party's conduct creates an undue burden.

V. REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that the Court:

3. **Order the parties to confer in good faith within ten (10) business days** of the entry of this Order to discuss any amendment to the complaint and to set a schedule for filing responsive pleadings;

4. **Enter a protective order** enjoining the United States Government, its officers, agents, servants, employees, and any persons acting in concert with them from taking any further adverse personnel actions, from restricting Plaintiff's access to IHS facilities, and from retaliating against Plaintiff for his protected disclosures;
5. **Award Plaintiff reasonable attorney's fees and costs** pursuant to 5 U.S.C. § 7701(a) and any other applicable authority;
6. **Grant such other and further relief** as the Court deems just and proper, including pre- and post-judgment interest and any necessary declaratory relief.

VI. SUPPORTING AFFIDAVIT

Plaintiff's Affidavit of Kevin D. Turnage (Exhibit 2) is submitted herewith and incorporated by reference. The affidavit is sworn under penalty of perjury and sets forth, in detail, the protected disclosures, the retaliatory personnel actions, the due-process deficiencies, and the unreasonable 24-hour deadlines imposed by the United States Attorney's Office.

VII. GOOD-FAITH CONSULTATION CERTIFICATE

A Good-Faith Consultation Certificate (Exhibit 1) is attached, confirming that Plaintiff engaged in a meet-and-confer effort with Defendant's counsel on **December 1-2, 2025** (see attached email correspondence, Exhibit 1-1) and again on **December 15, 2025** (see attached email correspondence, Exhibit 1-2). No agreement was reached, and Defendant failed to provide a reasonable response period.

VIII. CERTIFICATE OF SERVICE

I hereby certify that on **December 29, 2025** I electronically filed the foregoing Motion, supporting affidavit, and all exhibits in the Court's CM/ECF system. All parties of record are registered CM/ECF participants; therefore, electronic filing constitutes service pursuant to Local Rule 5.6(c)(1) of the District of Arizona.

/s/ Kevin D. Turnage

Kevin D. Turnage, Pro Se Plaintiff

Date: December 29, 2025